

HEADS DOWN TO HEADS UP

Weekly Intelligence Brief

Happenings in AI last week, and what they mean for your business.

ISSUE

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PREPARED FOR

M&T Bank

Regional Bank

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Prepared by Keel3, LLC

ANNOUNCEMENTS

WHAT IT MEANS

WHAT IT MEANS FOR: M&T BANK

1 Microsoft Blocks Claude Fable 5 Internally Over a 30-Day Data Retention Clause

The Information · June 11, 2026

Microsoft quietly restricted employee access to Anthropic's Claude Fable 5, despite being a major Anthropic investor. The trigger is a new data retention policy storing prompts and outputs for 30 days by default and up to two years for flagged content. Microsoft's legal team is reviewing whether the terms meet its own data protection standards.

Frontier model quality is no longer the deciding factor in enterprise AI procurement: data handling terms are. When even Anthropic's own major investor blocks the model on retention grounds, it signals that every regulated buyer must read these clauses before rollout, not after.

IN PLAIN TERMS

Like a hospital that declines an excellent transcription service because the contract says the vendor keeps a copy of every dictation for a month: the quality doesn't matter once the data terms fail the compliance review.

DATA RETENTION CLAUSES ARE NOW A GATING TERM IN BANK AI VENDOR REVIEWS

Any AI vendor contract that stores prompts or outputs for 30 or more days creates a potential exposure for customer data, regulated communications, or proprietary information. M&T Bank's compliance and procurement teams should add explicit retention and flagging term review to every AI vendor evaluation and renewal process, and confirm existing deployments meet that bar before the next contract cycle.

2 German Court Rules Google Owns the Words Its AI Generates and Is Liable When They Are Wrong

The Decoder · June 10, 2026

Munich's Regional Court issued a preliminary injunction holding Google directly liable for false statements in its AI Overviews feature. The decision treats AI-generated summaries as Google's own independent statements, removing the traditional search-engine liability shield. The case involved AI Overviews that wrongly tied two publishers to fraud.

For the first time, a court has ruled that the organization generating an AI answer owns the words in it and can be held responsible when they are wrong. If upheld, the same logic reaches any organization publishing AI-generated answers to customers, not just Google.

IN PLAIN TERMS

The difference between a library lending you a book it didn't write and a newspaper printing its own article: once you author the words, you own the mistakes in them.

BANK AI CHATBOTS AND AUTOMATED DISCLOSURES CARRY LEGAL AUTHORSHIP RISK

Any M&T Bank customer-facing AI tool that states facts about named clients, products, or accounts is now in a class where the Munich reasoning would assign legal authorship to the bank, not the AI vendor. Compliance should audit customer-facing AI outputs for factual claim exposure, and every AI-generated communication that goes to customers should have a named human accountable for accuracy before this precedent spreads to US jurisdictions.

3 EU AI Act Enforcement of General-Purpose AI Rules Begins August 2, Now Under 60 Days Out

European Commission / EU AI Act timeline · June 9, 2026

The European Commission's enforcement authority over general-purpose AI model providers takes effect August 2, 2026, alongside mandatory transparency and

With the grace period closing, AI vendors that serve EU markets face active enforcement for the first time. Any bank with EU customers, correspondent relationships, or AI vendors operating in Europe is exposed indirectly even if it is US-centric, because vendors must now comply and those compliance costs and terms flow through to buyers.

BANKS WITH EU VENDOR EXPOSURE MUST CONFIRM AI COMPLIANCE STATUS BEFORE AUGUST 2

M&T Bank's vendor management and compliance teams should identify which AI suppliers have EU market exposure and request confirmation of their August 2 compliance posture before the window closes. Even for domestic US banking operations,

THE WEEK
IN ONE LINE

This week's stories run a single thread: AI moved fast into enterprise and consumer infrastructure, and the compliance, data, liability, and cost frameworks that should have been built first are now arriving under pressure. For a regional bank, the most important sentence of the week is the one from a Munich court and a Microsoft memo saying the same thing: the organization that deploys the AI owns what it does.